



CHAPTER cxv.

An Act for incorporating and conferring powers on the Western Valleys (Monmouthshire) Railless Electric Traction Company and for other purposes. A.D. 1913.

[15th August 1913.]

WHEREAS the running of trolley vehicles moved by electrical power transmitted thereto from some external source for the conveyance of passengers and parcels along the routes hereinafter described would be of public and local advantage:

And whereas the persons in that behalf in this Act named with others are willing at their own expense to carry the undertaking into execution on the powers hereinafter contained being conferred upon them and it is expedient that they be incorporated into a company (hereinafter called "the Company") for that purpose:

And whereas it is expedient that the other powers contained in this Act be authorised:

And whereas plans and sections showing the lines and levels of the road widening authorised by this Act the plans showing also the lands to be taken or used compulsorily under the powers of this Act and also a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Monmouth and are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

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A.D. 1913. May it therefore please Your Majesty that it may be enacted
— and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows:—

PRELIMINARY.

Short title. 1. This Act may be cited as the Western Valleys (Monmouthshire) Railless Electric Traction Act 1913.

Incorporation of Acts. 2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Companies Clauses Consolidation Act 1845 Part I.
(relating to cancellation and surrender of shares) of the
Companies Clauses Act 1863 as amended by subsequent
Acts:

The Lands Clauses Acts (except section 127 of the Lands
Clauses Consolidation Act 1845):

The following provisions of the Tramways Act 1870
(namely):—

Section 3 Interpretation of terms;

Part II. Relating to the construction of tramways
(except sections 25 28 and 29);

Section 41 Tramways to be removed in certain cases;

Section 42 Proceedings in case of insolvency of
promoters;

Section 45 Tolls &c;

Section 46 Byelaws by local authority Promoters
may make certain regulations;

Section 47 Penalties may be imposed in byelaws;

Section 48 Power to local authority to license drivers
conductors &c.;

Section 49 Penalty for obstruction of promoters in
laying out tramway;

Section 51 Penalty on passengers practising frauds on
the promoters;

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Section 52 Transient offenders ; A.D. 1913.

Section 53 Penalty for bringing dangerous goods on
the tramway ;

Section 55 Promoters or lessees to be responsible for
all damages ;

Section 56 Recovery of tolls penalties &c. ;

Section 60 Reserving powers of street authorities
to widen &c. roads ;

Section 61 Power for local or police authorities
to regulate traffic in roads ;

Section 62 Reservation of right of public to use roads :

Provided that the provisions of the Tramways Act 1870
incorporated with this Act shall be read and have effect as if
trolley vehicle equipment as defined by this Act were tramways
and as if trolley vehicles were carriages used on tramways.

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incor-
porated herewith have subject to the provisions of this Act the
same respective meanings unless there be something in the
subject or context repugnant to such construction :

The expression "the Company" means the Western Valleys
(Monmouthshire) Railless Electric Traction Company
incorporated by this Act ;

The expression "the undertaking" means the undertaking
by this Act authorised ;

The expression "trolley vehicles" means mechanically
propelled vehicles adapted for use upon roads and moved
by electrical power transmitted thereto from some
external source and includes omnibuses engines cars
waggon trailers and all other similar vehicles ;

The expression "trolley vehicle equipment" means and
includes all posts poles standards brackets cables con-
ductors tubes mains transformers feeders wires and other
apparatus and equipment for the purpose of working
and lighting the trolley vehicles ;

The expression "the routes" means the routes along which
the Company are by this Act authorised to run the trolley
vehicles.

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INCORPORATION OF COMPANY CAPITAL &C.

Company
incorporated.

4. Sir James de Hoghton Baronet Sir Alexander Doran Gibbons Baronet John Henry Gilbert Harris Archibald Lyle Thomas Parry and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a Company for the purposes hereinafter mentioned and shall be and are hereby incorporated by the name of "The Western Valleys (Monmouthshire) Railless Electric Traction Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General pur-
poses of
Company.

5. The Company shall be established for the purpose of—
(a) Providing and working trolley vehicles as provided by this Act along the routes for the conveyance of passengers and parcels; and
(b) Generating electricity to be used in connection with the trolley vehicles.

Capital.

6. The capital of the Company shall be sixty thousand pounds in sixty thousand shares of one pound each.

Issue of
shares.

7. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share is paid in respect thereof.

Calls.

8. One-fourth of the amount of a share shall be the greatest amount of a call and two months at least shall be the interval between successive calls.

Receipt in
case of per-
sons not sui
juris.

9. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to
borrow.

10. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the capital which at the time of borrowing has been raised under

the powers of this Act but no sum shall be borrowed until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued have been fully paid up. A.D. 1913.

11. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole. Appointment of receiver.

12. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank pari passu (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. Debenture stock.

13. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable. Application of moneys.

14. The first ordinary meeting of the Company shall be held within twelve months after the passing of this Act. First ordinary meeting.

15. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than three. Number of directors.

16.—(1) The qualification of a director shall be the possession in his own right of not less than two hundred shares. Qualification of directors.

(2) No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership

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A.D. 1913. but no such person shall as a director vote in respect of any
— question as to any such contract.

Quorum. 17. The quorum of a meeting of directors shall be three.

First and
subsequent
directors. 18. Sir James de Hoghton Baronet Sir Alexander Doran
Gibbons Baronet John Henry Gilbert Harris Thomas Parry and
one other person to be nominated by them or the majority of
them and consenting to such nomination shall be the first
directors of the Company and shall continue in office until the
first ordinary meeting held after the passing of this Act.

At that meeting the shareholders present in person or by
proxy may either continue in office the directors appointed by
this Act or nominated as aforesaid or any of them or may elect
a new body of directors or directors to supply the place of those
not continued in office the directors appointed by this Act or
nominated as aforesaid being if they continue qualified eligible
for election.

At the first ordinary meeting to be held in every year after
the first ordinary meeting the shareholders present in person or
by proxy shall (subject to the power hereinbefore contained for
varying the number of directors) elect persons to supply the
places of the directors then retiring from office agreeably to the
provisions of the Companies Clauses Consolidation Act 1845.

The several persons elected at any such meeting being
neither removed nor disqualified nor having died or resigned
shall continue to be directors until others are duly elected in
their stead.

PROVISION AND WORKING OF TROLLEY VEHICLES.

Power to
provide and
work trolley
vehicles. 19. The Company may provide maintain and equip trolley
vehicles and may use the same upon the routes hereinafter
mentioned (that is to say):—

In the counties of Brecknock and Monmouth—

Section No. 1 Commencing in the parish of Llanelly near
the Castle Hotel Brynmawr at the junction of Beaufort
Street and Bailey Street and thence along the main
road through Nantyglo and Blaina by way of Chapel
Road New Road King Street Queen Street High Street
and Abertillery Road to the Tylers Arms Blaina thence
along Glan-y-rafon Terrace Bourneville Road the new

road past Rose Heyworth Colliery Gladstone Street A.D. 1913.
 Alma Street Foundry Bridge Church Street High Street
 Somerset Street Alexandra Road through Bridge Street
 Six Bells to and terminating in Victoria Road at its
 junction with Commercial Road at Aberbeeg:

In the county of Monmouth—

Section No. 2 Commencing at the termination of section
 No. 1 aforesaid passing thence along Commercial Road
 and High Street Llanhilleth and terminating at or near
 the Central Hotel Llanhilleth:

And the Company may subject to the provisions of this
 Act on over under along and across any streets or roads forming
 part of or adjoining the routes and also any public streets or
 roads adjoining or intersecting the routes in which it may be
 necessary so to do for the purpose of obtaining access to any
 lands depôts sheds or property of the Company place erect
 lay down maintain renew alter and repair trolley vehicle equip-
 ment and may make and maintain openings and ways for the
 purpose of working the trolley vehicles by electrical power and
 of obtaining access as aforesaid and may for those purposes
 subject to the provisions of this Act and of Part II. of the
 Tramways Act 1870 so far as the same are incorporated with
 this Act open break up alter or otherwise interfere with any
 such streets and roads as aforesaid and any railways tramways
 or sidings crossed by the routes and any sewers drains pavements
 pipes tubes wires and apparatus in upon over or under any
 such streets and roads.

20. The trolley vehicles shall not be deemed to be light Trolley ve-
 locomotives within the meaning of the Locomotives on Highways hicles not to
 Act 1896 nor of the byelaws and regulations made thereunder be deemed
 nor shall they be deemed to be motor cars within the meaning light loco-
 of the Motor Car Act 1903 (except subsection (1) of section 1 tives or
 of that Act and the provisions necessary for enforcing that motor cars.
 subsection) and neither the regulations made under that Act
 nor the enactments mentioned in the schedule to the Locomotives
 on Highways Act 1896 nor the Locomotives Act 1898 shall
 apply to such trolley vehicles.

21. Nothing in this Act shall in any way affect the duties Saving of
 of excise now payable by law on licences to be taken out for excise duties.

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A.D. 1913. trolley vehicles as carriages or light locomotives or hackney carriages.

Approval of
trolley vehi-
cles by
Board of
Trade.

22.—(1) The trolley vehicles and the trolley vehicle equipment shall be of such form weight construction and dimensions as the Board of Trade may approve and no trolley vehicles shall be used by the Company which do not comply with the requirements of the Board of Trade or until the trolley vehicle equipment has been approved by the Board of Trade.

(2) No post or other apparatus shall be erected on the carriageway of any public street or road except with the consent of the Board of Trade.

(3) No trailers shall be drawn by trolley vehicles without the consent of the Board of Trade.

Fares for
passengers.

23. The Company may demand and take for every passenger travelling upon the trolley vehicles including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile Provided that the Company may appoint stages for the trolley vehicles each of not less than half a mile in length and may demand and take for every such passenger including every such incidental expense a fare not exceeding one penny for any two consecutive stages or portion thereof travelled by such passenger.

Cheap fares
for labouring
classes.

24.—(1) The Company at all times after the opening of the routes for public traffic shall and they are hereby required to run a proper and sufficient service of trolley vehicles for artisans mechanics colliers and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday and other public holidays always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance but in no case shall the Company be bound to charge a less sum than one penny On Saturdays the Company in lieu of running such vehicles after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after

considering the circumstances of the locality may by order direct the Company to provide such service as may appear to the Board to be reasonable. A.D. 1913.

(3) The Company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

25. Every passenger travelling by any of the trolley vehicles may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers. Passengers' luggage.

26. The Company shall not carry on the trolley vehicles any goods animals or things other than passengers and passengers' luggage and small parcels. Company not to carry animals and goods.

27. The Company may demand and take in respect of parcels not exceeding fifty-six pounds in weight conveyed by them on the trolley vehicles including every expense incidental to the conveyance any rates or charges not exceeding the following :— Rates for parcels.

For any parcel not exceeding seven pounds in weight three-pence ;

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight fivepence ;

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence ;

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence.

28.—(1) If at any time hereafter the Company desire to use trolley vehicles upon any street or road within the urban districts respectively of Abertillery Nantyglo and Blaina and Brynmawr (other than the streets or roads hereinbefore specified) or to construct any work in order to give due effect to the powers by this Act authorised they may make application to the Board of Trade and the Board of Trade are hereby empowered to make a Provisional Order authorising the use of trolley vehicles upon any route or routes or the construction of such work as aforesaid to which such application relates and to insert in such Provisional Order such provisions of this Act as they Board of Trade may authorise new routes and grant other powers.

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A.D. 1913. may consider necessary in reference to the breaking up of streets roads and places the placing of standards brackets and overhead wires in such extended routes and any other provisions (including power to raise the necessary capital) as may be necessary or expedient to give full effect to the powers of such Provisional Order.

(2) The Board of Trade may and they are hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(3) The Board of Trade shall consider any such application and may if they think fit direct an enquiry to be held in the district in relation thereto or may otherwise enquire as to the propriety of proceeding upon such application and they shall consider any objection to such application that may be lodged with them in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(4) In any case where it shall appear to the Board of Trade expedient and proper that the application be granted they may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(5) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(6) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(7) Any expenses incurred by the Board of Trade in A.D. 1913.
connection with the preparation and making of any such
Provisional Order and any expenses incurred by the Board of Trade
in connection with any enquiry under this section shall be paid
by the Company.

29. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of the trolley vehicles anything which is calculated to obstruct or interfere with the working of the trolley vehicles or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence shall be liable to a penalty not exceeding twenty pounds. Penalty for malicious damage.

30. The trolley vehicles may be moved by electrical power subject to the following provisions (that is to say):— Provisions as to motive power.

- (1) The electrical power shall not be used except according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Act referred to as “the Board of Trade regulations”) for securing to the public all reasonable protection against danger arising from the use under this Act of electrical power for propelling the trolley vehicles and for regulating the use of electrical power :
- (3) The Company or any other company or person using any electrical power on the trolley vehicles contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :
- (4) The Board of Trade if they are of opinion—
 - (a) That the Company or such other company or person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

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(b) That the use of electrical power as authorised under this Act is a danger to the passengers or the public;

may by order either direct the Company or such other company or person to cease to use such electrical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Company or such other company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Special provisions as to use of electrical power.

31. The following provisions shall apply to the use of electrical power under this Act:—

- (1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working the undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The Company shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company

either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking: A.D. 1913.

(5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents:

(6) If any difference arises between the Company and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be.

32. No trolley vehicle route shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade. Inspection by Board of Trade.

33. Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. Alteration of telegraph lines of Postmaster-General.

34.—(1) The Company shall construct their trolley vehicle equipment and shall work the undertaking in all respects with For protection of Post Office telegraph lines.

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A.D. 1913. due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of the trolley vehicle equipment and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration.

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of the trolley vehicle equipment or by the working of the undertaking the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection.

(3) Before any electric line is laid down or any act or work for working or lighting the trolley vehicles by electricity or for the supply of electrical energy is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration.

(4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the

purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations. A.D. 1913.

(5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues.

(6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice.

(7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work.

(8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act.

(9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882.

(10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways

A.D. 1913. Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act.

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid.

(12) The expression "the Company" shall include their lessees and any person owning working or running the trolley vehicles.

Use of
 trolley vehi-
 cle posts by
 Postmaster-
 General.

35.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Company in connection with the trolley vehicles and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

(a) In placing maintaining or altering such telegraph no obstruction shall be caused to the working or user of the trolley vehicles:

(b) The Postmaster-General shall give to the Company not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as hereinafter provided:

(c) Unless otherwise agreed between the Postmaster-General and the Company the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration

rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the trolley vehicles or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Company or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section: A.D. 1913.

- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as hereinafter provided:
- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair:
- (g) The Postmaster-General shall make good to the Company and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Company their officers or servants:
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Company and the Postmaster-General in the use of the

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—

post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Company or failing agreement determined as hereinafter provided :

- (i) The Company shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the trolley vehicles or by any accident arising thereon or by the authorised use by the Company of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Company their officers or servants :
- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Company the value of the same Provided that if the Company or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided.

(2) Nothing in this section contained shall prevent the Company from using their posts standards or brackets for the support of any of their electric wires and apparatus in connection with their trolley vehicles or shall take away any existing right of the local authority of using the posts standards or brackets of the Company in connection with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and the local authority in relation to the use of the posts standards or brackets of the Company by the Postmaster-General and the local authority respectively under this section or under the sections of this Act whereof the sidenotes respectively are "For further protection of Abertillery Urban District Council" and "For further protection of Brynmawr Nantyglo and Blaina and Abertillery

Urban District Councils" shall be determined as hereinafter A.D. 1913.
provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section the expression "the Company" shall include their lessees and any person owning working or running the trolley vehicles the expression "telegraph" has the same meaning as in the Telegraph Act 1869 and other expressions have the same meaning as in the Telegraph Act 1878.

36. The Company shall perform with respect to the trolley vehicles provided under this Act all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated. Conveyance of mails.

37. The Company may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the trolley vehicles by electrical power : Attachment of brackets to buildings.

Provided that—

(1) Where in the opinion of the Company any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Company notice in writing requiring the attachments to be

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removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):

- (3) The owner may require the Company to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

Company to have exclusive right of using trolley vehicle equipment.

38. Subject to the provisions of this Act the Company shall have the exclusive right of using any trolley vehicle equipment provided erected or maintained by them under and for the purposes of this Act and any person using the said equipment otherwise than by agreement with the Company shall for every offence be liable to a penalty not exceeding twenty pounds.

Company may appoint stopping and starting places.

39. The Company may appoint the stations and places from which the trolley vehicles shall start or at which they may stop for the purpose of taking up or setting down passengers and may make regulations for fixing the time during which such trolley vehicles shall be allowed to remain at any such place.

Shelters or waiting rooms.

40. The Company may erect and maintain shelters or waiting rooms for the accommodation of passengers and of the servants of the Company and may use for that purpose portions of any street or road public park gardens or recreation grounds provided that such powers shall only be exercised in the case of a public street or road public park gardens or recreation ground with the consent of the local and road authority or in the case of a private street or road with the consent of the owner thereof.

Trees or shrubs overhanging streets and footpaths.

41.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the working of the trolley vehicles or the erection maintenance and user of any trolley vehicle equipment or with the clear and safe passage of the trolley vehicles and the passengers thereon the Company may serve a notice on the owner of the tree hedge or shrub or

on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Company may themselves carry out the requisition of their notice doing no unnecessary damage. A.D. 1913.

(2) Any person aggrieved by any requirement of the Company under this section may appeal to a court of summary jurisdiction within three clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the Company and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Company under this section.

42. If the Company at any time find it necessary or desirable to remove snow or other matter impeding the working of trolley vehicles on the routes the Company may remove the snow or other matter to the side of the road but so as not to impede or obstruct the ordinary traffic on the road and the Company shall not use salt or other unsuitable material for thawing the snow on any road Provided that any snow or other matter removed by the Company under this section shall not be allowed to remain on the road but shall be at once taken away by the Company. As to removal of snow &c.

43. Within one month after the Nantyglo and Blaina Urban District Council (hereinafter in this section called "the council") shall have reconstructed and widened the roads in their district in which the routes will be situate so as to adapt such roads for the running of trolley vehicles thereon the Company shall pay to the council one-third of the cost of such works but such one-third shall not exceed the sum of six hundred and fifty pounds: Contribution towards reconstruction and widening of roads in Nantyglo and Blaina.

Provided that if the reconstruction and widening of any such road shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration as aforesaid and the council shall be deemed to be "undertakers" within the meaning of the said Act.

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—
Contribution
towards road
maintenance.

44.—(1) The Company shall in each year pay to each road authority towards the cost of the maintenance of the roads on which the routes will be situate a sum equivalent to three-eighths of a penny per car mile run by such trolley vehicles upon such roads during each year. Provided that nothing in this section shall apply to the trolley vehicles run by the Company at cheap fares for the working class.

(2) The Company shall keep daily records for the purposes of this section showing in proper detail the routes traversed and the number of journeys and the mileage run by each trolley vehicle on the roads of each road authority and shall furnish statements of such routes journeys and mileage quarterly to each road authority and the Company shall allow any person duly authorised by any such authority in that behalf at all reasonable times to inspect and take copies of all such records and any accounts kept by the Company relating to the running of all such trolley vehicles.

(3) For the purposes of this section the expression "road authority" shall in the case of each road mean the county council or district council in whom such road is vested or who have the power to maintain or repair such roads and shall include the Great Western Railway Company.

CONSTRUCTION OF ROAD WIDENING.

Power to
make road
widening.

45. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the road widening hereinafter in this section described with all necessary and convenient approaches embankments cuttings walls fences culverts drains works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for that purpose. The road widening hereinbefore referred to and authorised by this Act will be situate in the parish of Llanhilleth in the urban district of Abertillery in the county of Monmouth and is—

A widening of Victoria Road on the east side thereof commencing at the point of junction with an unnamed road leading to Church Road and St. Iltyd Church and terminating at a point 150 feet or thereabouts northwards along the said Victoria Road:

Provided that the Company shall not take away or appropriate for their own use any stone or other material which may be blasted or quarried during the making of the road widening authorised by this Act. A.D. 1913.

46. In constructing the road widening aforesaid the Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent not exceeding five feet. Limits of deviation.

47. The road widening referred to in the section of this Act whereof the marginal note is "Power to make road widening" and the trolley vehicle equipment shall be commenced within eighteen months from the date of the passing of this Act and if the same are not completed within one year thereafter then on the expiration of such last mentioned period the powers by this Act granted to the Company for executing those works or otherwise in relation thereto shall cease. Provided that the Board of Trade may allow further time for the completion of the said works if the completion of the same within the time limited shall have been delayed by strikes or unforeseen circumstances. Period for commencement and completion of works.

ACQUISITION OF LAND.

48. The Company may for the purposes of the road widening and the erection of generating stations by this Act authorised and other the purposes of this Act enter upon take hold and use the lands delineated on the deposited plans and described in the deposited book of reference and in the Schedule to this Act. Power to take lands.

49. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter Correction of errors in deposited plans and book of reference.

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A.D. 1913. is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Monmouth and a duplicate thereof shall also be deposited with the clerk of the urban district council or parish council of the parish in which the lands affected thereby are situate and shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

50. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Purchase of lands by agreement.

51. In addition to the other lands which the Company are by this Act authorised to purchase and acquire they may purchase take on lease or acquire by agreement and may hold for the purposes of the undertaking any lands not exceeding five acres and they may on such lands erect depôts yards offices buildings sidings works and other conveniences in connection with the undertaking and cottages and other buildings for persons in their employ but nothing in this Act shall exonerate the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased or used by them under the powers of this section.

GENERATING STATION.

Lands for generating station.

52. Subject to the provisions of this Act the Company may appropriate and use as stations for generating electrical energy and for providing and working thereon engines dynamos and other electrical plant and works the lands described in the Schedule to this Act and may also sink a well on the said lands for the purposes of obtaining a supply of water but the Company shall not create or permit any nuisance on such lands and shall not erect any generating station except upon the said lands.

PROTECTIVE PROVISIONS.

For protection of Monmouthshire

53. For the protection of the Monmouthshire County Council and the Breconshire County Council (each of which is

hereinafter in this section called "the county council") the following provisions shall unless otherwise agreed in writing between the county council and the Company have effect within the counties of Monmouth and Brecknock (hereinafter referred to as "the counties") (that is to say):—

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—
and Brecon-
shire County
Councils.

- (1) In this section the expression "main road" includes any road under the jurisdiction of or repairable by the county council or to the repair of which they contribute (save as is hereinafter provided in the case of roads vested in the Nantyglo and Blaina Urban District Council) and the expression "county bridge" includes any bridge of or repairable by the county council:
- (2) All trolley vehicle equipment erected or laid in or along any main road or county bridge shall be erected or laid in such position in along or at the side of such road and in the case of underground works at such depth as the county council in writing under the hand of the surveyor may reasonably direct and no post or other apparatus shall be erected or laid on the carriageway of any main road except with the consent of the county council:
- (3) The Company shall not in any way interfere with or attach any trolley vehicle equipment to the structural part of any county bridge without the consent of the surveyor in writing (which consent shall not be unreasonably withheld):
- (4) The design of all posts poles and brackets in any main road shall be such as may be reasonably approved by the county council and no advertisements shall be exhibited on any trolley vehicle equipment of the Company:
- (5) All works shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or county bridge:
- (6) If any trolley vehicle equipment of the Company interferes with the construction by the county council of any new road bridge or footpath or the improvement reconstruction or alteration of any main road or county bridge or in the opinion of the county council

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becomes an obstruction to traffic on any main road or county bridge the Company shall alter the position thereof in such manner as the county council may reasonably direct :

- (7) If the Company in the execution of any works in or affecting any main road or county bridge shall cause any damage injury or disturbance to such main road or county bridge and shall fail to properly make good all such damage injury or disturbance in accordance with the provisions of section 27 of the Tramways Act 1870 then it shall be lawful for the county council after reasonable notice to the Company of the alleged failure and of the works which they propose to execute to do all works necessary for making good all damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works :
- (8) The width of tyre on the back or driving wheels of the trolley vehicles shall not be less than six inches and the diameter of such wheels shall not be less than two feet six inches The tyres of all wheels used on the trolley vehicles shall be of rubber or such other substances as may be agreed upon between the county council and the Company or failing agreement be settled by arbitration in manner hereinafter provided :
- (9) A number shall be assigned to each trolley vehicle and a plate bearing such number shall be fixed in conspicuous positions outside the vehicle at the front and back thereof and easily distinguishable by day and night :
- (10) The county council shall not be liable for or in respect of any damage or injury done to any work of the Company (a) by reason of such work being laid at a depth below the surface of any county road or county bridge insufficient for its protection from injury arising from the use by the county council of any steam or other roller or traction engine not exceeding fifteen tons in weight or (b) from the passage of the

traffic in such road or bridge or (c) in repairing any such road or bridge in a proper and reasonable manner : A.D. 1913.

- (11) The Company shall make full compensation to the county council for any damage caused to any sewer culvert pipe or work of the county council laid in a proper position and manner by reason of the running of the trolley vehicles :
- (12) Notwithstanding anything in this Act it shall not be lawful for the Company except with the previous consent in writing of the county council which consent shall not be unreasonably withheld (a) to place erect or lay down any trolley vehicle equipment on over under along or across or to open break up alter or otherwise interfere with or to run trolley vehicles upon any main road or county bridge except such portion of any main road as forms part of the routes or any routes authorised by any Provisional Order under the provisions of the section of this Act whereof the marginal note is "Board of Trade may authorise new routes and grant other powers" or (b) to run any service of omnibuses vans or other automobiles or to use any engines within the counties except on the routes :
- (13) The Company shall pay to the county council the reasonable costs of their surveyor in superintending any works or operations of the Company under the provisions of this section and under the provisions of the Tramways Act 1870 incorporated with this Act :
- (14) If any difference arises between the county council and the Company under the provisions of this section such difference shall be referred to a single arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers and subject thereto the Arbitration Act 1889 shall apply to any such reference :
- (15) The foregoing provisions of this section shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the county council.

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For protec-
tion of urban
district coun-
cils of Aber-
tillery Nan-
tyglo and
Blaina and
Brynmawr.

54. For the protection of the urban district councils of Abertillery Nantyglo and Blaina and Brynmawr (each of which is in this section referred to as "the council") the following provisions shall unless otherwise agreed have effect (viz.):—

- (1) The Company shall before commencing to open or break up any road or footpath or to exercise any of the powers of this Act within the urban districts of Abertillery Nantyglo and Blaina and Brynmawr (each of which is hereinafter in this section referred to as "the district") serve upon the Council a notice describing the proposed works together with plans and sections showing the mode and position in which the works are intended to be executed and the manner in which it is intended that such roads or footpaths shall be interfered with and any works or any erections under or upon such roads or footpaths shall be subject to the reasonable approval of the council and shall be carried out in accordance with the reasonable requirements of the council and such approval must be obtained in writing before such works are commenced and the council shall be deemed to have approved the same in the event of their failing to intimate their disapproval thereof within thirty-one days of the receipt of the said plans and sections:
- (2) The works by this Act authorised within the district (hereinafter referred to as "the authorised works") shall be executed so as not to stop or unreasonably impede or interfere with the traffic along any road or footpath under the control or jurisdiction of the council:

Whenever the Company shall have opened or broken up any road or footpath in the exercise of any of their powers they shall complete the works and fill in the ground to the reasonable satisfaction of the council and the making good of the road shall include the application of a sufficient layer of surface metalling or flagging to the same specification as that employed by the council for the particular road. If such roadway or footpath is not repaired to the reasonable satisfaction of the council's surveyor

and if after reasonable notice the Company fail to do so the council may themselves execute such necessary works and recover the expenses thereof from the Company: A.D. 1913.

- (3) The Company shall during the progress of the authorised works take all necessary steps at their own expense to protect the public using any road or footpath from injury and shall indemnify the council against all costs losses or damages that may be incurred or suffered consequent upon their neglect or omission to provide such protection:
- (4) The council shall be at liberty at any time or times after one month's notice in writing served upon the Company to divert or to remove alter or renew any road bridge or footpath over which the Company have running powers and to carry out any works thereon without making any compensation to the Company for loss or expense which the Company may be put to in consequence of the exercise of their powers Any alterations of any works of the Company necessitated by the exercise of such powers shall be effected by and at the expense of the Company and in accordance with the reasonable requirements of the council's surveyor:

Provided that the council shall give to the Company seven days' notice of their intention to execute any work under this subsection which may interfere with the running of the trolley vehicles and shall execute such work so as to cause as little interruption as possible to the running of the trolley vehicles:

- (5) The council shall not be liable for or in respect of any damage or injury to the undertaking over or under any of the council's roadways or footways arising from the reasonable and proper use of the council's steam roller or any such works that may be necessary for them to carry out in the discharge of their duties as a highway and sanitary authority and the council shall not be responsible for any delay or suspension of traffic caused to the Company by their running over any road upon which repairs thereto or the

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construction of drainage or other works in connection therewith are being reasonably carried out:

- (6) If the Company in the execution of the authorised works shall cause any damage injury or disturbance to any sewer drain gas or water mains pipe wire or other apparatus of the council laid in a reasonable position and manner in any street or road within the district and shall fail to properly make good all such damage injury or disturbance then it shall be lawful for the council in addition to the incorporated provisions of the Tramways Act 1870 to which they are entitled after reasonable notice to the Company of the alleged failure and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the council all costs charges and expenses which they shall reasonably and properly incur in carrying out such works including all reasonable expenses of superintending the same:
- (7) The Company shall make full compensation to the council for any damage caused to any sewer drain gas or water mains pipe wire or other property of the council laid in a proper position and manner by reason of the running of the trolley vehicles authorised by this Act:
- (8) The design of all posts poles and brackets to be erected in any street or road within the district together with particulars as to the proposed situation thereof shall be submitted to and approved of by the council but such approval shall not be unreasonably withheld:
- (9) The Company shall light all trolley vehicles inside and outside on the top as soon as it is dusk and shall keep the same so lighted while running or standing in the district and also shall insulate the metal rods of such trolley vehicles which are or may be accessible to the public and provide all necessary automatic cut-outs:
- (10) All shelters and waiting rooms to be erected by the Company in the district for the accommodation of passengers and servants of the Company shall be of

a suitable material and design and erected and thereafter maintained in such a position as the council shall approve : A.D. 1913.

- (11) No advertisements shall be exhibited on any trolley vehicle equipment of the Company erected in the district :
- (12) The foregoing provisions shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the council :
- (13) If any difference at any time arises between the council and the Company under the provisions of this section such difference shall be settled by an engineer to be appointed on the application of either party by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

55. For the further protection and benefit of the urban district council of Abertillery (in this section referred to as "the council") the following provisions shall unless otherwise agreed have effect (viz.) :—

For further protection of Abertillery Urban District Council.

- (1) The Company shall in the next session of Parliament promote and do their best to secure the granting of a Provisional Order under the section of this Act whereof the marginal note is "Board of Trade may authorise new routes and grant other powers" for the following extensions in the urban district of Abertillery of the routes by this Act authorised (that is to say) :—

Extensions to Cwmtillery on the east and west sides of the Cwmtillery Valley ;

Extension from the Foundry Bridge down Station Hill along Carlyle Street and Glandwr Street and terminating at or near Harcourt Terrace :

- (2) The Company shall lay the cables and mains underground between the following points :—

Somerset Street Abertillery commencing about fifty yards south of the police station and continuing to the commencement of Church Street near St. Michael's Church ;

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—

Gladstone Street Abertillery from the commencement of Portland Street to a point near the house known as "Bryn Ivor" occupied by J. R. Leech:

- (3) Within one month after the Company shall have commenced to run trolley vehicles through Gladstone Street they shall on demand pay to the council the sum of one hundred pounds towards the cost of altering the said street:
- (4) The Company shall on the date of the commencement of the construction of the works by this Act authorised pay to the council the sum of seven hundred and fifty pounds towards the construction of Rose Heyworth Road and the council shall forthwith proceed to complete the construction of the said road:
- (5) The council shall upon giving not less than twenty-eight days' notice to the Company of their desire so to do have the right without payment to use any posts or standards of the Company in any street or road within the district of the council for the support of any electric cables wires gas or electric lamps belonging to the council provided the said notice shall be accompanied by sufficient plans to be approved by the Company (such approval not to be unreasonably withheld) showing the method and position in which it is proposed that such cables wires or lamps should be supported and that in placing maintaining or altering such cables wires or lamps no obstruction or interference shall be caused to or with the working of the trolley vehicles and no damage shall be caused to such posts or standards and that if any damage be caused thereto the council shall be responsible for and make good the same to the Company Provided also that if the council use the posts or standards for any of the purposes aforesaid they shall not have any claim upon the Company in respect of the damage caused by the user of electricity by the Company for the purposes of this Act:
- (6) Where the Company's standards are erected on the same route as the council's overhead electric cables

or wires the Company shall where necessary if re- A.D. 1913.
 quired by the council repay to the council any
 reasonable expense incurred by them in transferring
 their said electric cables and wires on to the Com-
 pany's standards so that the existing standards of
 the council may be taken down and removed The
 council shall provide their own insulation and attach-
 ments for mounting their wires on the Company's
 standards;

If it be found impracticable to carry on the Com-
 pany's standards between the commencement of the
 council's feeder lines and the terminus of the railless
 traction lines in Llanhilleth being approximately a
 distance of seven hundred yards the existing wires
 of the council and the future wires which the council
 have already provided for on their standards then the
 Company shall at their own expense place under-
 ground such of the council's wires as cannot be
 carried on the Company's standards and all such
 work shall be done to the satisfaction of the engineer
 to the council:

- (7) If any difference at any time arises between the council
 and the Company under the provisions of this section
 such difference shall be settled by an engineer to
 be appointed on the application of either party by
 the Board of Trade and the provisions of the Arbitra-
 tion Act 1889 shall apply to any such arbitration.

56. For the further protection of the Brynmawr Nantyglo and Blaina and Abertillery Urban District Councils (in this section respectively referred to as "the council") the following provisions shall unless otherwise agreed have effect (viz.):—

For further
 protection of
 Brynmawr
 Nantyglo
 and Blaina
 and Aber-
 tillery Urban
 District
 Councils.

- (1) Subsections (2) (6) (7) (12) and (13) of the section of this
 Act of which the marginal note is "For protection
 of Monmouthshire and Breconshire County Councils"
 shall extend and apply for the benefit and protection
 of the council so far as regards the roads in the
 district vested in the council over or upon which
 any of the powers of this Act may be exercised and
 those subsections so far as the said roads are con-
 cerned shall be read and have effect as though the
 expressions "district road" and "the council" were

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substituted for the expressions "main road" and
 "the county council" respectively:

- (2) The council shall be at liberty to use any posts poles or brackets erected under the powers of this Act for the purpose of affixing and maintaining thereon street name plates fire alarms and telephone wires in connection therewith and lamps and other attachments for public lighting provided that no damage be thereby done to the trolley vehicle equipment or if done be made good by the council and that no interference with the trolley vehicle service be caused:
- (3) If any difference at any time arises between the council and the Company under the provisions of this section such difference shall be settled by an engineer to be appointed by the parties or in case of disagreement to be appointed on the application of either party by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
 tion of Lon-
 don and
 North West-
 ern Rail-
 way Com-
 pany.

57. The following provisions for the protection of the London and North Western Railway Company (hereinafter referred to as "the North Western Company") shall unless otherwise agreed apply and have effect:—

- (1) The Company shall not without the previous consent of the North Western Company (which consent shall not be unreasonably withheld) break up alter or otherwise interfere with any railway siding or property belonging to or leased to or occupied by the North Western Company:
- (2) Notwithstanding anything contained in this Act the Company shall not attach any brackets wires and apparatus to any building belonging to or used or occupied by the North Western Company:
- (3) No shelter or waiting room shall be constructed within ten yards of either side of the siding which crosses a public road at Brynmawr:
- (4) If any difference shall arise between the Company and the North Western Company under this section such

difference shall be referred to and determined by the Board of Trade on the application of the Company or the North Western Company. A.D. 1913.

58. For the protection of the Brynmawr and Blaina Gas Company (hereinafter referred to as "the protected company") the following provisions shall apply and have effect:—

For protec-
tion of
Brynmawr
and Blaina
Gas Com-
pany.

(1) In exercising the powers of opening and breaking up streets and roads or any pipes and apparatus belonging to the protected company under the section of this Act the marginal note whereof is "Power to provide and work trolley vehicles" the Company shall be subject to the restrictions of section 30 of the Tramways Act 1870:

(2) The Company in constructing the works by this Act authorised shall take all reasonable precautions for preventing any damage to the mains pipes and apparatus of the protected company (in this section hereinafter referred to as "apparatus") and shall make good all damage done and shall make full compensation to the protected company for any loss or damage which they may sustain or be put to by reason of any interference by the Company with such apparatus and if the supply of gas in or through the mains or pipes of the protected company shall by reason of such interference or of any act or omission of the Company or any act or acts done in connection with the construction or repairing of any trolley vehicle equipment by any of their contractors agents workmen or servants or any person in their employ be interfered with or interrupted the Company shall compensate the protected company for and indemnify them against all damages losses claims or expenses incurred by or caused to them by or by reason or in consequence of such interference or interruption:

(3) The protected company on giving to the Company not less than forty-eight hours' notice (except in cases of emergency) in writing of their intention so to do may by their own engineer and workmen execute any work in connection with their apparatus that

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may be reasonably necessary for the diversion shoring up or supporting or otherwise altering the position or levels of and restoring and protecting any such apparatus which it may be necessary to divert shore up support alter restore protect or repair by reason of the execution of any works of the Company and for preventing any interruption to the supply of gas by the protected company and the Company shall on completion pay to the protected company the reasonable expenses incurred by them in the execution of such works :

- (4) The foregoing provisions of this section shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the protected company :
- (5) Any dispute or difference which may arise between the Company and the protected company or their respective engineers touching any of the matters referred to in this section shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final.

For protec-
tion of Aber-
tillery and
District
Water
Board.

59. For the protection of the Abertillery and District Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the Company and the board apply and have effect (that is to say):—

- (1) Section 30 of the Tramways Act 1870 incorporated with this Act shall be deemed to apply to the mains pipes or other apparatus of the board and any plans and sections which the Company are required by the said section to submit to the board shall be submitted to the board at least fourteen days before the commencement of any works to which the said plans and sections relate and shall be accompanied by a description of the proposed works and notice of the date on which the Company propose to commence the same and if the board give any notice under the said section in relation to such proposed works the same shall not be commenced except

in case or emergency until the requirements of the board have been agreed or settled by arbitration as by such section is provided The power of the board under the said section 30 to require the lowering or other alterations of their mains pipes and apparatus in this section called "apparatus" shall be deemed to extend so as to authorise the board to require the shoring up or supporting and restoring and protecting of any such apparatus which it may be reasonably necessary to shore up support restore or protect by reason of the execution of any works of the Company or for preventing any interruption to the supply of water by the board All such works as aforesaid shall be done under the superintendence and to the reasonable satisfaction of the board or their engineer and the reasonable costs charges and expenses of such superintendence shall be paid to the board by the Company and if the board before the Company are entitled to commence any such work elect by notice in writing to the Company so to do the board may themselves execute any work relating to any apparatus of the board to which any such notice or requirement relates under the superintendence and to the reasonable satisfaction of the engineer of the Company and the amount reasonably expended by the board in so doing shall be repaid to them by the Company but if for seven days after giving any such notice the board do not proceed with due diligence to execute any such works as aforesaid the Company may forthwith execute the same:

- (2) Nothing in this Act shall relieve the Company or any other authority body or person from any liability for any damage which the board may sustain by reason or in consequence of any injury caused to their apparatus by reason of the working of trolley vehicles under the powers of this Act:

Provided that the Company shall not be liable under this subsection for any damage loss claims or expenses incurred by or caused to the board by reason of the breakage of or injury to any apparatus laid in a reasonably proper manner in the carriage-way of any road forming part of the routes on

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account of the running or working of the trolley vehicles unless such apparatus is laid at least two feet below the surface of such carriageway:

- (3) The foregoing provisions of this section shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the board:
- (4) Any dispute or difference which may arise between the Company and the board or between the engineer to the Company and the engineer of the board touching any of the matters referred to in this section or concerning any plans sections or descriptions to be delivered to the board thereunder shall unless otherwise agreed be determined by an engineer to be appointed failing agreement on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of Great
Western
Railway
Company.

60. For the protection of the Great Western Railway Company (in this section hereinafter referred to as "the Great Western Company") the following provisions shall unless otherwise agreed between the Company and the Great Western Company apply and have effect (that is to say):—

- (1) Before commencing any works under the powers of this Act affecting any of the railways or affecting any bridges over or under any of the railways or the roadway under or on any such bridge or over any level crossing of the Great Western Railway or over the immediate approaches to any such bridge or level crossing the Company shall submit plans sections and particulars of such works to the Great Western Company for their approval and if so approved the said works shall be constructed and carried into effect in conformity with such plans sections and particulars Provided always that if within twenty-eight days after the submission thereof the Great Western Company fail to signify their approval of such plans sections and particulars they shall be deemed to have disapproved the same and thereupon the said works shall be constructed in accordance with plans sections

and particulars to be approved by an arbitrator to be appointed as hereinafter provided All such works shall be constructed and thereafter maintained and repaired by the Company under the superintendence and to the reasonable satisfaction of the engineer to the Great Western Company and if and whenever the Company fail so to do the Great Western Company may make such works as they may think reasonably necessary in that behalf and the Company shall repay to the Great Western Company the reasonable expenditure incurred by them in so doing and in default thereof the same may be recovered by the Great Western Company from the Company:

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- (2) The Company shall not in the construction alteration maintenance or use of the said works by this Act authorised injure alter or interfere with the railways of the Great Western Company or the structure of any bridge over or under any of the said railways or obstruct or cause any interruption to or interference with the traffic on any of the said railways or at to or from any station thereon:
- (3) If any such injury or interruption shall arise from or in any way be owing to any of the works or operations of the Company or the failure of any mains pipes or works in under or near any railway bridge level crossing approach land works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed to be determined by arbitration in the manner hereinafter provided:
- (4) The Company shall pay to the Great Western Company the reasonable expense of lighting and watching the railways and works of the Great Western Company with reference to and during the execution or repair by the Company under this Act of any work affecting any bridge railway or other work belonging to the Great Western Company for preventing all interference obstruction damage and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of either of them or otherwise:

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- (5) The Company shall be responsible for and make good to the Great Western Company all losses damages and expenses which may be occasioned to the Great Western Company or any of their works or to any company or person using their railway by or by reason of the execution or failure of any of their said works or by reason of any act default or omission of the Company or of any person in their employ or of any contractors for such works or any part thereof and the Company shall effectually indemnify and hold harmless the Great Western Company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission:
- (6) If by reason of the construction of any work or the erection of any trolley vehicle equipment or apparatus upon across or over any bridge or other work of the Great Western Company or the user of trolley vehicles thereover it becomes necessary to strengthen or reconstruct such bridge the Great Western Company shall give notice accompanied by sufficient plans and particulars to the Company of such works as may be reasonably necessary and may after twenty-eight days from the date of the notice or forthwith in case of emergency proceed to execute the same but in all things at the expense of the Company and the Great Western Company may recover from the Company all moneys reasonably expended by the Great Western Company in the execution of such works as aforesaid or in connection therewith:
- (7) If having regard to the proposed position of any trolley vehicle equipment or other works of the Company by this Act authorised when considered in relation to the position of the works of the Great Western Company at any point where the wires of the Great Western Company pass over or under the routes it is desirable in the reasonable opinion of the Great Western Company that the electric telegraph telephonic or signal wires or apparatus belonging to or maintainable by the Great Western Company shall be altered the Great Western Company may execute

any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Company: A.D. 1913.

- (8) Whenever and so often as the Great Western Company shall at any time hereafter under their existing statutory powers require either to lift widen lengthen strengthen reconstruct alter or repair their said railways or bridges under or upon which the works in connection with the routes by this Act authorised are laid and if it shall be necessary for such purposes that the working or user of the trolley vehicles or any trolley vehicle equipment or apparatus used in connection therewith shall be wholly or in part stopped or delayed or any trolley vehicle equipment or apparatus be temporarily wholly or in part taken up diverted or removed and if the Great Western Company accordingly give to the Company twenty-eight days' notice in writing (or in the case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up diversion or removal then the working or user of the trolley vehicles or trolley vehicle equipment or apparatus shall be stopped or delayed or such part of the trolley vehicle equipment or apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Company and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the trolley vehicle equipment or apparatus shall be restored with all practicable dispatch but the Great Western Company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal:
- (9) The Company shall from time to time pay to the Great Western Company any additional expense which the Great Western Company may reasonably incur in effecting such lifting widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the

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maintenance or renewal of any bridge or other work of the Great Western Company by reason of the existence or user of the said routes trolley vehicle equipment or apparatus :

- (10) If and when under their existing statutory powers the Great Western Company shall require to reconstruct widen lengthen alter repair or paint any bridge under which any trolley vehicle equipment of the Company has been placed the Company shall in order to ensure the safety of the workmen employed in such reconstruction widening lengthening alteration repairing or repainting cut off the electric current from the trolley vehicle equipment under such bridge at such time or times as shall be reasonably required by the engineer of the Great Western Company unless the Company shall have previously adopted some other means of protection to workmen which shall have been reasonably approved by the said engineer :
- (11) The Company shall not for the purposes of this Act erect any post or posts or other works on or make attachments to the structure of any bridge or other works or property of the Great Western Company without the consent in writing of the engineer of the Great Western Company such posts works and attachments if allowed to be in all respects subject to the reasonable approval of the said engineer and to be temporarily removed at any time when required by him in connection with the maintenance and reconstruction or alteration lengthening or widening of the said bridges or other works or property :
- (12) Notwithstanding anything contained in this Act the Company shall not without the consent in writing of the Great Western Company under the hand of their secretary erect any shelter or waiting room or stop any trolley vehicle in front of or in close proximity to the entrances to or exits from the stations and premises of the Great Western Company so as to impede or interfere with the traffic to and from such stations and premises of the Great Western Company or on the bridges over the railway of the

Great Western Company over which the trolley A.D. 1913.
vehicles may pass:

- (13) The Company shall in each year pay to the Great Western Company towards the cost of the maintenance of the roads repairable by the Great Western Company on which the routes will be situate a sum equivalent to three-eighths of a penny per car mile run by such trolley vehicles upon such roads during each year Provided that nothing in this subsection shall apply to the trolley vehicles run by the Company at cheap fares for the working class:
- (14) If any difference shall arise between the Company or their engineer and the Great Western Company or their engineer as to the meaning of this section or as to any plans and sections or as to any work or method of executing the same or as to any expenses referred to in this section the same shall be determined by an arbitrator to be agreed upon between the Company and the Great Western Company or failing agreement to be nominated by the President of the Institution of Civil Engineers on the application of any of the parties and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such arbitration.

MISCELLANEOUS.

61. Subject to the provisions of this Act the Board of Trade Byelaws.
may make byelaws with regard to the trolley vehicles for all or any of the following purposes (that is to say):—

For regulating the use of any bell whistle or other warning apparatus fixed to the trolley vehicles:

For providing that trolley vehicles shall be brought to a stand at the intersection of cross streets and at such places as the Board of Trade may deem proper for securing safety:

For regulating the entrance to exit from and accommodation in the trolley vehicles and the protection of passengers from the apparatus used for drawing or propelling such trolley vehicles:

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation

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to the trolley vehicles by exhibition of the same in some conspicuous place on the trolley vehicles and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

Power to purchase &c. trolley vehicles and trolley vehicle equipment.

62. The Company may purchase provide and hire trolley vehicles trolley vehicle equipment vans motors repairing and other cars and all other apparatus and things which may be necessary for or incidental to the working of trolley vehicles and the exercise of the powers conferred upon the Company by this Act.

Agreements with local authorities as to supply of electrical energy.

63. The Company on the one hand and any local authority company or person authorised by Act of Parliament or Order confirmed by Parliament to supply electrical energy on the other hand may from time to time enter into and carry into effect agreements for or with respect to all or any of the following purposes and all matters incidental thereto (that is to say):—

(1) The supply to the Company by any such local authority company or person of electrical energy for working and lighting the trolley cars of the Company for the time being worked by the Company under the foregoing provisions of this Act whether such working and lighting is or is not situate wholly or partly beyond the district of such authority company or person :

(2) The payments to be made or other consideration to be given in respect of any such supply of electrical energy.

For the purpose of such supply any such local authority company or person may lay pipes tubes and wires from any generating station of such local authority company or person from or to the trolley vehicle equipment in under over across or along any street or road (including the footpaths thereof) bridge footpath or public place in any district or parish in which the trolley vehicle equipment will be or is situate Provided always that the laying by such local authority company or person of such pipes tubes and wires and subject to the provisions of this Act the supply of electrical energy under this section shall be carried out in accordance with and subject to the provisions of

the Act or Order authorising such local authority company or person to supply electrical energy : A.D. 1913.

Provided further that the laying of any pipes tubes and wires under this section in the urban district of Nantyglo and Blaina shall be subject to the consent of the council of that district but such consent shall not be unreasonably withheld.

64. Nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section. For protection of undertakers under Electric Lighting Acts.

65. The Company may acquire and hold patent and other rights and licences (not being exclusive) in relation to the use of electrical power for the purposes of this Act. Power to hold patent rights.

66. Nothing in this Act contained shall exempt the Company or the undertaking from the provisions of any general Act relating to trolley vehicles passed after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates fares or charges authorised by this Act. Provision as to general trolley vehicle Acts.

67.—(1) If within six months after the expiration of a period of twenty-five years from the passing of this Act or within six months after the expiration of every subsequent period of seven years each of the local authorities in whose districts the routes are situate serve notice on the Company requiring the Company to sell to them the part of the undertaking within their district in accordance with the provisions of this section then the Company shall sell to each authority such part respectively. Future purchase of undertaking by local authorities.

(2) The total price to be paid to the Company shall be an amount equal to the fair market value of the undertaking as a going concern but without any allowance for compulsory purchase and in case of difference between the Company and the local authorities as to the amount to be so paid or between the local authorities as to the proportion of the price of the whole undertaking to be paid by each local authority the difference shall be determined by the Board of Trade or if the Board of Trade think fit by an engineer or other fit person appointed as arbitrator by the Board of Trade The Board of Trade Arbitrations

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A.D. 1913. &c. Act 1874 shall apply with reference to the determination
— by the Board of any such difference The Arbitration Act
1889 shall apply for the purpose of the determination of any
difference by an arbitrator appointed by the Board.

(3) A notice to purchase under this section given by a
local authority shall not be of any effect unless it is given in
pursuance of a special resolution of the authority.

Effect of
sale of un-
dertaking.

68. When the undertaking has been sold under this Act
all the rights powers authorities and obligations of the Com-
pany in respect of the undertaking sold shall (subject to the
provisions of this Act) be transferred to and vested in and
may be exercised by and shall attach to the respective autho-
rities to whom the same has been sold and in reference to
the same they shall be deemed to be the Company.

Costs of Act.

69. All costs charges and expenses of and incidental to
the preparing for obtaining and passing of this Act or otherwise
in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

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LANDS FOR GENERATING STATIONS.

Lands in the parish and urban district of Abertillery containing about 3 roods and being so much of the field numbered 174 on Sheet XVII. 4 of the Ordnance Survey for Monmouthshire (2nd edition 1901) as lies to the east of the new road past Rose Heyworth owned or reputed to be owned by the Nantyglo and Blaina Ironworks Company Limited and in the occupation of Joseph Wallace and bounded on the north-west north-east and south-east by other land reputed to be owned leased or occupied by the above-named ironworks company and Joseph Wallace respectively and bounded on the west by the said new road past Rose Heyworth.

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